

fraud because Defendant City of Fairfield is absolutely immune from liability from any misrepresentations made by its employees (Gov. Code § 818.8; *Masters v. San Bernardino County Employees Retirement Ass'n* (1995) 32 Cal.App.4th 30, 43) and Plaintiff did not allege the corruption or actual malice of any employee to have made any misrepresentation to overcome that employee's qualified immunity (Gov. Code § 822.2; *Masters*, 32 Cal.App.4th at 42). And, Plaintiff cannot sue Defendant City of Fairfield on an implied-in-law theory. (*Katsura v. City of Buenaventura* (2007) 155 Cal.App.4th 104, 109-110.)

While courts liberally grant leave to amend, it is improper to do so when a plaintiff cannot state a viable cause of action or show how she will amend the complaint to do so.

TANEKA BENNION and JAMES OAKLEY III v. CITY OF VALLEJO and COUNTY OF SOLANO

Case No. CU26-00059

VALLEJO's Demurrer

TENTATIVE RULING

Defendant CITY OF VALLEJO ("VALLEJO") demurs to the cause of action for violation of the Bane Act within Plaintiffs TANEKA BENNION and JAMES OAKLEY III's complaint. Plaintiffs allege that VALLEJO's public works personnel killed their father James Oakley II ("Decedent") by crushing him along with his belongings with a backhoe during a homeless encampment cleanup operation. Plaintiffs allege that VALLEJO's personnel observed a mattress covered with a tarp but rather than properly investigate the mattress and ensure no human being was present simply kicked it and made a short verbal inquiry before proceeding to utilize heavy machinery.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Bane Act Civil Rights. Civil Code section 52.1 (the "Bane Act") permits civil actions against persons who intentionally interfere with the civil rights of others. A plaintiff

asserting a Bane Act violation must show that the defendant interfered with or attempted to interfere with the plaintiff's legal rights by committing a threatening, intimidating, or coercive act. (*Doe v. State of California* (2017) 8 Cal.App.5th 832, 842.) The essence of a Bane Act claim is that the defendant, by specified improper means of threat, intimidation, or coercion, tried to or did prevent the plaintiff from doing something he had the legal right to do or tried to or did force the plaintiff to do something he was not legally required to do. (*Austin B. v. Escondido Union School District* (2007) 149 Cal.App.4th 860, 883 (*Austin B.*))

Cornell v. City and County of San Francisco (2017) 17 Cal.App.5th 766 (*Cornell*) does not materially change that simple standard to something that could support Bane Act liability against VALLEJO on the facts alleged. In *Cornell* a police trainee on a jog found himself chased by police officers who thought he looked suspicious while in an area known for drug deals. (*Id.* at p. 771.) Pursuing officers threatened to shoot the trainee and eventually ordered him to the ground, arrested him, and subjected him to a drug test at a hospital. (*Ibid.*) The First District Court of Appeal held that the claim was properly submitted to the jury because there was enough evidence to support it where the pursuing officers threatened to use deadly force against the trainee, unlawfully arrested the trainee, and baselessly cited him with evading arrest. (*Id.* at p. 793.) and the officers' subjective spite and intentional violation of his right showed reckless disregard for his right. (*Id.* at pp. 803-804.)

The complaint before the court now plainly alleges that VALLEJO's employees negligently killed Decedent. They gave a cursory check of his mattress for signs of life, used the backhoe, and stopped what they were doing immediately when they noticed Decedent's body. (*Id.* at ¶¶ 17, 20-21.) Nothing here states a particular purpose to commit acts that violate Decedent's rights. VALLEJO's personnel are alleged to not have realized Decedent was there, however much they should have realized he was there. There is no Bane Act violation stated in the complaint.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Plaintiffs' statements of ability to amend the complaint are that they would more clearly allege VALLEJO's knowledge of the risk that people could be concealed during encampment cleanups, more clearly allege how VALLEJO's safety protocols were inadequate, and more clearly allege that VALLEJO proceeded to use heavy equipment to clean up Decedent's camp site in disregard of his rights. The promised additional allegations are only further emphasis on the theories and conclusions currently stated in the complaint and do not show additional facts supporting that VALLEJO's personnel had a particular purpose to violate Decedent's rights.

Conclusion. VALLEJO's demurrer is sustained without leave to amend.
